

P O R T E R | S C O T T

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CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

08/19/2026

Clerk of the Court

BY: JEFFREY FLORES

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

**DEFENDANT CSAA INSURANCE
EXCHANGE'S REPLY TO OPPOSITION
TO MOTION TO DECLARE PLAINTIFF
A VEXATIOUS LITIGANT**

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Date: August 26, 2026

Time: 9:00 a.m.

Dept: 302

Defendants.

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 Defendant CSAA INSURANCE EXCHANGE (“Defendant”) hereby submits the following
2 in Reply to the Opposition filed by Plaintiff FRANCISCUS DYLAN ROSARIO to Defendant’s
3 Motion to Declare Plaintiff Vexatious Litigant.

4 **I. INTRODUCTION**

5 Plaintiff’s Opposition confirms rather than rebuts the arguments contained in Defendant’s
6 Motion to have Plaintiff deemed a vexatious litigant. Rather than addressing the statutory
7 requirements of Code of Civil Procedure §§ 391(b)(2), 391(b)(3) and 391.3, Plaintiff devotes most
8 of his Opposition to improperly rearguing the supposed merits of the underlying litigation from
9 2021, challenging prior rulings, and raising collateral issues concerning Anti-SLAPP, the Fair
10 Claims Settlement Practices Regulations, Insurance Code section 790.03, venue, and constitutional
11 principles as a veritable grab bag of disjointed legal arguments. These arguments are outside the
12 scope of the present Motion and do not bear on whether Plaintiff satisfies the statutory requirements
13 under Code of Civil Procedure § 391 and 391.3.

14 Many of the arguments contained in the Opposition touch upon Plaintiff’s pending appeal
15 of his underlying Action from 2021. That Appeal’s arguments relate only to certain jury instructions:
16 specifically, certain Vehicle Code provisions not provided to the jury. (*See Opp.* pp. 5:22 - 6:4.)

17 Rather than responding to the statutory arguments raised in the Motion, the Opposition
18 largely revisits arguments concerning the merits of the underlying litigation that have already been
19 adjudicated at jury trial and/or on Defendant’s Anti-SLAPP motion. The Opposition simply ignores
20 Defendant’s evidence cited in the motion including: Plaintiff’s several adverse determinations,
21 repeated attempts to relitigate issues previously decided, repeated lawsuits against the same original
22 defendant (Mr. SUBHI ABDELHALIM), and Plaintiff’s abusive filing of unmeritorious papers.
23 Instead, Plaintiff simply reasserts arguments that have already been presented and rejected by the
24 Court, and by a jury. Plaintiff’s disagreement with those rulings does not defeat Defendant’s
25 Motion—in fact, it reinforces the cogency of the instant Motion.

26 Alternatively, where Plaintiff at least nominally attempts to address the applicable statutory
27 provisions to this Motion, his arguments still fail. Plaintiff does not meaningfully rebut Defendant’s
28 evidentiary showing under Code of Civil Procedure section 391, nor does he identify any new facts

1 or controlling authority demonstrating a reasonable probability of prevailing against Defendants
2 under § 391.3.

3 **II. LEGAL ARGUMENT**

4 Plaintiff's Opposition ultimately fails for at least two reasons. First, Plaintiff's filing of
5 multiple, frivolous Opposition papers to this very motion demonstrates the need to deem him
6 vexatious. Second, Plaintiff relies on arguments that are irrelevant to the Court's determination
7 under Code of Civil Procedure § 391; and 391.3. Second, the remaining arguments in Opposition
8 also fail to rebut Defendant's evidentiary showing—and Defendant's evidence demonstrates the
9 necessity of this Motion to conserve judicial resources and protect Defendant from Plaintiff's
10 persistent, frivolous litigation activity. For these reasons, the Court should grant the Motion and
11 deem Plaintiff a Vexatious Litigant.

12 **A. Plaintiff's Response to this Vexatious Litigant Motion Is, In a Word, Vexatious**

13 In purported Opposition to this Motion, Plaintiff has filed no fewer than twenty-two (22)
14 opposition papers—all merely attempting to relitigate his underlying Jury trial loss in his 2021 case.
15 All those papers were filed in a matter of two days: July 21, 2026 – July 22, 2026. The Code and
16 Rules of Court allow Plaintiff a *single* Opposition to this motion; however, as has been the case for
17 the life of this proceeding, Plaintiff refuses to comply with the Rules and chooses instead to file as
18 many Opposition papers as he wants, burying the Defense and Court in voluminous pleadings and
19 frivolous papers.

20 In purported rebuttal to the Motion's § 391(b)(3) argument, the Opposition argues that the
21 volume of papers in this case were "self-created" by the Defense. (*Opp.* p. 11.) This is demonstrably
22 false. Even a cursory review of the docket in this matter—and the related matter: *Rosario v.*
23 *Abdelhalim, Case No. CGC-25-631801*—make clear that Plaintiff's disregard for Court rules and
24 penchant for frivolous filings are all of his own making.

25 Furthermore, Plaintiff responded to this Motion by continuing his bombardment of Defense
26 counsel, and counsel's staff, by sending several harassing email correspondences casting various
27 threats, aspersions, and accusations (*See Declaration of Tyler J. O'Connell* [hereinafter "*O'Connell*
28 *Decl.*"], ¶ 2, **Ex. A.**)

1 This Court can, and should, curb Plaintiff's frivolous, unnecessary, and harassing conduct,
2 by granting this Motion.

3 **B. Plaintiff's Opposition Relies on Arguments That Are Irrelevant to the Court's**
4 **Determination Under Code of Civil Procedure Sections 391 and 391.3**

5 In scattershot fashion, the Opposition reaches for various and sundry legal issues that are
6 simply irrelevant to this Motion. Plaintiff argues a series of off-target and rambling assertions,
7 including: i) that Defendant is improperly attempting to "bootstrap" an anti-SLAPP victory into a
8 vexatious litigant motion; ii) that Defendant violated the Fair Claims Settlement Practices
9 Regulations and Insurance Code section 790.03; iii) that the Court should revisit issues concerning
10 venue and prior rulings, and iv) that granting the Motion would improperly burden Plaintiff's
11 constitutional rights of access to the courts. None of these arguments actually address the statutory
12 bases for the Motion under Code of Civil Procedure §§ 391(b); or 391.3.

13 Plaintiff's discussion of the anti-SLAPP proceeding, and his arguments concerning
14 Defendant's alleged litigation conduct do not determine whether Plaintiff qualifies as a vexatious
15 litigant. Rather, these arguments seek to relitigate the merits of the underlying dispute instead of
16 addressing the statutory criteria before the Court.

17 The only question presently before the Court is whether Plaintiff satisfies the requirements
18 of both Code of Civil Procedure section 391(b)(2) and (b)(3), and whether there is a reasonably
19 probability that Plaintiff will prevail against Defendants. Plaintiff's collateral arguments do not
20 answer either question. Accordingly, they provide no basis to deny Defendant's Motion.

21 **C. The Remainder of the Opposition's Arguments Still Fail to Rebut Defendant's**
22 **Evidentiary Showing.**

23 Even where the Opposition attempts to address the statutory requirements for determining
24 vexatious litigant status, the arguments still fail.

- 25 1. Plaintiff is a Vexatious Litigant Under Code of Civil Procedure section 391(b)(2)
26 Because Plaintiff's Underlying Jury Verdict and Court's Entry of Judgment was a Final
27 Determination and Plaintiff has not Raised Any of the Issues in this Case, in his Pending
28 Appeal

Plaintiff argues that Code of Civil Procedure section 391(b)(2) does not apply because the

1 prior proceeding allegedly involved different primary rights, a different defendant, and lacked a
2 final determination. However, none of those arguments have merit, because they still fail to rebut
3 Defendant's evidentiary showing.

4 First, Plaintiff's related action—*Rosario v. Abdelhalim*, Case No. CGC-25-631801—names
5 the same original defendant from his underlying case: Mr. Subhi Abdelhalim. Incidentally, Plaintiff
6 appears to have made false factual claims about Mr. Abdelhalim, in public facing web forums. (See
7 O'Connell Decl., ¶ 3, **Ex. B.**)

8 Second, the jury verdict and this Court's judgment from the underlying case, constitute a
9 final determination of those issues that Plaintiff has declined to appeal. Indeed, the only issues raised
10 in Plaintiff's Appeal relate to jury instructions issues surrounding certain Vehicle Code provisions,
11 which were not provided to the jury. Therefore, all arguments presented in *this* case (i.e.: anything
12 but the jury instructions) are finally determined from the underlying case as Plaintiff's deadline to
13 appeal has lapsed. (See *Sander v. Superior Court* (2018) 26 Cal.App.5th 651, 670 ("It is axiomatic
14 that arguments not raised in the trial court are forfeited on appeal."); see also *Cal. Rules of Court*,
15 *Rule* 8.204 (requiring an appellant to "state each point" on appeal, and "explain why the order
16 appealed from is appealable."))

17 In short, none of the issues presented in this case, can now be included in Plaintiff's already
18 filed appeal. This means necessarily that all issues not raised in Plaintiff's appeal are considered
19 forfeited arguments on appeal; and therefore, are "finally determined," with respect to this motion
20 under Code Civ. Proc. § 391(b)(2).

21 2. Plaintiff is Also a Vexatious Litigant Under Code of Civil Procedure section 391(b)(3)
22 because he Continues to Burden and Harass the Defense with Frivolous and Unnecessary
23 Filings and Service Documents

24 The Opposition claims that section 391(b)(3) does not apply because Plaintiff's filings have
25 not been frivolous and because Defendant allegedly "created" the volume of filings through
26 Defendant's own motion practice. This is not so. Although Defendant filed a single Anti-SLAPP
27 Motion, Plaintiff responded by filing three separate oppositions, instead of complying with the
28 Code's limit of a single Opposition. Plaintiff consistently filed unmeritorious papers, served
unnecessary (and Code precluded) discovery, and burdened and harassed Defendant's counsel with

1 hundreds of email correspondences designed to needless consume time and energy. Plaintiff's
2 filings and harassing emails are almost entirely frivolous and exemplify precisely the type of
3 unmeritorious, unnecessary, and frivolous litigation conduct that Code of Civil Procedure §
4 391(b)(3) seeks to preclude.

5 3. Plaintiff Cannot Demonstrate a Reasonable Probability of Prevailing in Either Pending
6 Action: as Both Cases Have Concluded with Granted Anti-SLAPP Motions

7 Finally, the Opposition argues that Defendant has failed to establish the requirements of
8 Code of Civil Procedure section 391.3 because Plaintiff purportedly has a reasonable probability of
9 prevailing. Given the clear ruling on both Anti-SLAPP motions¹, this argument is untenable.
10 Plaintiff identifies no new facts or controlling authority supporting this assertion. Instead, he simply
11 repeats arguments previously presented to and then rejected by the Court. Relitigating past Court
12 decisions does not establish a *reasonable* probability of success in the future or otherwise defeat
13 Defendant's Motion. Accordingly, Plaintiff has failed to rebut Defendant's showing under Code of
14 Civil Procedure section 391 and 391.3.

15 **III. CONCLUSION**

16 Defendant therefore respectfully requests this Court grant Defendant's Motion to have
17 Plaintiff Deemed A Vexatious Litigant, including all other relief as requested in the Proposed Order.

18 Dated: August 19, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE

28 ¹ An Anti-SLAPP motion was granted in this case on July 1, 2026. And another Anti-SLAPP motion was granted in
Plaintiff's factually identical, and related action, on August 6, 2026.

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On August 19, 2026, I served the following document: **DEFENDANT CSAA**
7 **INSURANCE EXCHANGE'S REPLY TO PLAINTIFF'S OPPOSITION TO**
8 **DEFENDANT'S MOTION TO DECLARE PLAINTIFF A VEXATIOUS LITIGANT**

9		BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
10		BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
11		BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
12	X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

13 Addressed as follows:

14 **PLAINTIFF, IN PRO PER**

15 Franciscus Dylan Rosario
16 7624 Melody Drive
17 Rohnert Park, CA 94928
18 soltrinox@gmail.com

19 I declare under penalty of perjury under the laws of the State of California that the foregoing
20 is true and correct. Executed on Sacramento, California on August 19, 2026.

21 **Monique Schubert**
22 Monique Schubert